

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

MSC MEDITERRANEAN SHIPPING CO. SA, *Respondent*.

**DOCKET NO. 23-12**

Served: August 8, 2024

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**ORDER OF:** Linda S. Harris CROVELLA, *Administrative Law Judge*.

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**FIRST AMENDED SCHEDULING ORDER**

On July 22, 2024, the parties filed a Joint Motion to Extend Deadlines (“MTE”), seeking a 90-day extension of the remaining deadlines from those established in the Scheduling Order issued on May 9, 2024. Initially, the parties proposed ending discovery over three and a half months after the 150-days set forth in Rule 141 and the Initial Order, and that was allowed because of the volume of documents produced, the need to manually review those documents, and the number of witnesses anticipated for depositions. 46 C.F.R. § 502.141; Initial Order at 1; Scheduling Order at 1-3. The parties essentially assert the same reasons as good cause for the current extension of time.

As was stated in the Scheduling Order, the partial motion to dismiss resulted in “one less allegation on which the parties must focus their discovery, and it is unclear if this was taken into consideration in the parties’ motion.” Scheduling Order at 1. The parties did not address in the instant motion why the narrowed allegations did not result in any change in the expected volume of discovery. However, based on the volume of records the parties assert must be manually reviewed after they are electronically searched, some adjustment to the typical discovery schedule must be made.

The proposed schedule seeking a 90-day extension in addition to the three and half months beyond the time set for discovery in Rule 141 that was previously granted, is unreasonable, and instead, the parties will be allowed a 60-day extension.<sup>1</sup> The parties are strongly encouraged to resolve discovery disputes between themselves, and to try to narrow the issues and stipulate to facts when possible. Despite efforts to avoid deadlines during the holiday season at the end of November, the end of December, and in mid- to late January, some due dates fall within or immediately after holiday weeks/weekends (specifically, due dates for completion of depositions of fact witnesses and production of initial and rebuttal expert reports). If those dates cannot be met due to specific conflicts, the parties should attempt to adjust them within the confines of the below schedule before filing further motions for extensions of time. If

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<sup>1</sup> Proposed days that fall on a weekend are moved to the nearest weekday.

the parties have conflicts that can only be addressed by amending the remaining scheduled due dates further, those conflicts must be specified in the motion, as opposed to relying on general or speculative conflicts. Moreover, a scheduling order issued by another administrative law judge is not legal precedent, and each presiding officer is responsible for the time management of their own docket. 46 C.F.R. § 502.25(b)(4). Thus, how other presiding officers choose to amend discovery and briefing schedules in other cases does not demonstrate good cause for amendments in this case. Accordingly, the parties are **ORDERED** to follow the schedule set forth below:

|                    |                                                                                                                |
|--------------------|----------------------------------------------------------------------------------------------------------------|
| September 30, 2024 | Substantial completion of documents and ESI pursuant to initial RFPs                                           |
| October 30, 2024   | Joint status report due describing status of discovery                                                         |
| December 2, 2024   | Complete depositions of fact witnesses                                                                         |
| December 2, 2024   | Last day to serve interrogatories, requests for admission, and RFPs                                            |
| December 23, 2024  | Disclosure of initial expert reports, if any                                                                   |
| January 22, 2025   | Disclosure of rebuttal expert reports, if any                                                                  |
| January 27, 2025   | Joint status report identifying expert witnesses and summarizing the purpose of their testimony                |
| February 20, 2025  | Complete expert depositions                                                                                    |
| February 20, 2025  | Close of discovery                                                                                             |
| March 17, 2025     | Complainant's initial brief, proposed findings of fact, and appendix                                           |
| April 14, 2025     | Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix |
| April 28, 2025     | Complainant's reply brief and responses to proposed findings of fact                                           |

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d

888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Any filing submitted without page numbers, including on exhibits, may be rejected. The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
  - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
  - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
  - c. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;

d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and

e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: [judges@fmc.gov](mailto:judges@fmc.gov), with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.



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Linda S. Harris Crovella  
Administrative Law Judge